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Case Number: 22SMCV02621 Hearing Date: July 28, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

VERONICA CUSIMANO, on behalf of

herself and all aggrieved employees pursuant to Labor Code §
2698 et seq.,

Plaintiff,

v.

BRILLIANT EARTH, LLC, et al.,

Defendants.

Case No.:

22SMCV02621

Hearing Date: 07/28/26

Trial Date:

None

[TENTATIVE] RULING RE:

MOTION FOR PRELIMINARY APPROVAL

OF CLASS ACTION AND PAGA

SETTLEMENT

Background

Plaintiff Veronica Cusimano ("Plaintiff") filed this putative class action alleging various wage and hour violations against Brilliant Earth, LLC ("Defendant") and Does 1 through 10, inclusive, and seeking, among other things, civil penalties under the Private Attorneys General Act ("PAGA").

On April 30, 2025, the Court of Appeal issued a remittitur affirming the Court's order denying Defendant's motion to compel arbitration of Plaintiff's individual PAGA claims.

On June 4, 2026, Plaintiff filed the instant motion for preliminary approval of class action and PAGA settlement. No opposition has been filed.

Legal Standard

Approval of class action settlements occurs in two steps. First, the court preliminarily approves the settlement, and the class members are notified as directed by the court. (Cal. Rules of Court ("CRC"), rule 3.769(c) & (f); *Cellphone Termination Fee Cases* (2009) 180 Cal.App.4th 1110, 1118 (*Cellphone Termination Fee Cases*).) Second, the court conducts a final approval hearing to inquire into the fairness of the proposed settlement. (CRC rule 3.769(e); *Cellphone Termination Fee Cases* at p. 1118.) Any party to a settlement agreement may serve and file a written notice of motion for preliminary approval of the settlement. (CRC rule 3.769(c).) The settlement agreement and proposed notice to class members must be filed with the motion, and the proposed order must be lodged with the motion. (*Ibid.*)

The trial court has broad discretion to determine whether the settlement is fair. (*Cellphone Termination Fee Cases*, *supra*, 180 Cal.App.4th at 1117.) In determining whether to approve a class

settlement, the court's responsibility is to "prevent fraud, collusion or unfairness to the class" through settlement and dismissal of the class action because the rights of the class members, and even named plaintiffs, "may not have been given due regard by the negotiating parties." (Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America (2006) 141 Cal.App.4th 46, 60.)

Discussion

Plaintiff

moves for preliminary approval of a proposed class and PAGA settlement set forth in the parties' Joint Stipulation of Class and PAGA Action Settlement and Release of Claims ("Stipulated Settlement").

A.

Terms of the Settlement

The Stipulated Settlement was entered into by Plaintiff and Defendant after mediation with Hon. Angela Bradstreet (Ret.). (Declaration of Attorney Eric A. Grover ("Grover Decl."), ¶¶ 5, 13; Exh. A – a copy of the Stipulated Settlement.)

The settlement

provides for a Maximum Settlement Amount ("MSA") of \$182,000, which will be allocated among approximately 195 Class Members. (Grover Decl., ¶ 21; Stipulated Settlement, § I.X.) The agreement defines Class Members as "all current and former non-exempt employees who worked for Defendant in California at any time or times during the Class Period. An individual Class Member also may be an Aggrieved Employee if he or she falls within the 'Aggrieved Employee' definition." (Stipulated Settlement, § I.H.) "Class Period" shall mean the time period from and including March 13, 2021, through November 13, 2025." (Id. at § I.I.) "Aggrieved Employee" means all current and former non-exempt employees who worked for Defendant in California at any time or times during the PAGA Period. All individual Aggrieved Employees are also Class Members, unless they opt-out of participation in the class action portion of the Settlement." (Id. at § I.C.) "PAGA Period" means the period from and including August 29, 2021 through November 13, 2025." (Id. at § I.CC.)

Plaintiff's

counsel testifies that: "After subtracting out the amounts allocated to pay the costs of administration (capped at no more than \$6,000), the PAGA Payment

(\$15,000), the Class Counsel Award (estimated to be \$60,666.66 in fees and actual out-of-pocket costs currently estimated to be no more than \$15,000), and the Class Representative's Incentive Award/General Release Payment (estimated to be \$5,000), all of which are subject to the Court's approval, the Net Settlement Amount ('NSA') is estimated to be \$80,833.34. The NSA will be distributed to all Settlement Class Members, defined as all Class Members who do not timely opt out, based on the formula set forth in the Stipulation and summarized below. On average, each of the 195 Class Members will receive a gross settlement payment of \$414.52 (\$80,833.34/195)." (Grover Decl., ¶ 21.)

B.

Class Certification

Before the court may approve the settlement, the settlement class must satisfy the normal prerequisites for class action. (*Amchem. Products, Inc. v. Windsor* (1997) 521 U.S. 591, 625-27.) The party advocating class treatment must demonstrate the: (1) existence of an ascertainable and sufficiently numerous class; (2) well-defined community of interest; and (3) substantial benefits from certification that render proceeding as a class superior to the alternatives. (*Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1021.)

1.

Ascertainability and Numerosity

In determining the existence of an ascertainable and sufficiently numerous class, courts examine the class definition, the size of the class, and the means of identifying class members. (*Miller v. Woods* (1983) 148 Cal.App.3d 862, 873.) Class members are ascertainable when they can be readily identified without unreasonable expense or time by reference to official or business records. (*Sevidal v. Target Corp.* (2010) 189 Cal.App.4th 905, 919.) The ascertainability requirement is satisfied if the potential class members may be identified without unreasonable expense or time and given notice of the litigation, and the proposed class definition offers an objective means of identifying those persons who will be bound by the results of the litigation. (*Id.* at p. 919.)

Plaintiff contends that the proposed class is ascertainable because class members can be readily identified in Defendant's

records, which show that there are approximately 195 Class Members. (Grover Decl. ¶¶ 12, 44.)

The Court finds that Plaintiff has established the existence of an ascertainable and sufficiently numerous class.

2.

Community of Interest

The community of interest component embodies three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class. (Sav-On Drug Stores, Inc. v. Superior Court (2004) 34 Cal.4th 319, 326.) The “ultimate question” for predominance is whether the issues which may be jointly tried, when compared with those requiring separate adjudication, are so numerous or substantial that the maintenance of a class action would be advantageous to the judicial process and to the litigants. (Duran v. U.S. Bank Nat’l Assn. (2014) 59 Cal.4th 1, 28.)

As a general rule, if the defendant’s liability can be determined by facts common to all members of the class, a class will be certified even if the members must individually prove their damages. (Brinker Restaurant Corp. v. Superior Court (2012) 53 Cal.4th 1004, 1021-22.) However, class treatment is not appropriate if every member of the alleged class would be required to litigate numerous and substantial questions determining his individual right to recover following the class judgment determining issues common to the purported class. (City of San Jose v. Superior Court (1974) 12 Cal.3d 447, 459.)

Plaintiff’s

counsel testifies that common questions of fact and law predominate over any questions affecting individual Class Members, Plaintiff’s claims are typical of the class, and Plaintiff will adequately represent the class for the following reasons. “All Class Members have worked or work as non-exempt employees for Defendant in California during the relevant time period. ... [A]ll Class Members were subject to Defendant’s uniform practices and policies regarding the computation of bonuses into employees’ regular rate of pay and related calculations of rates for meal and rest period premiums, overtime wages, and sick pay wages. ... [A]ll Class Members were subject to Defendant’s uniform practices and policies regarding the provision of meal periods and rest breaks, wage

statements, termination pay and expense reimbursement. Those uniform policies and practices are at the core of Plaintiff's allegations that Defendant violated the Labor Code and create questions of law and fact common to all Class Members. All the Class Members seek the same legal remedies under the same state laws." (Grover Decl. ¶ 45.) "Common questions regarding Defendant's pay, meal and rest break, wage statement and expense reimbursement policies and practices are among the key issues that will determine Defendant's alleged liability to the proposed settlement Class. ... [C]ommon questions will predominate over any individual questions that may arise. Under these circumstances, the requirements that common questions of law and/or fact exist among the proposed Class Members and will predominate over individual questions are satisfied for purposes of certifying the Class for settlement." (Ibid.) "Plaintiff's claims and the Class Members' claims arise from the same course of conduct" because Plaintiff, "like all Class Members, worked for Defendant as a non-exempt employee in California during the Class Period. Like all Class Members, Plaintiff was subject to Defendant's uniform policies and practices referenced above." (Id. at ¶ 46.) Plaintiff also has demonstrated that she will aggressively and competently assert the interests of the Class Members by retaining competent counsel experienced in litigating class action claims in the wage and hour context. (Id. at ¶ 47.)

The Court finds that
Plaintiff has satisfied the community of interest requirement.

3.

Substantial Benefit from Certification

The Court also finds that,
given the numerous Class Members and the fact that there are common questions of fact and law that predominate the class, class action is a superior method of adjudication of this action rather than requiring individual joinder of the Class Members.

For those reasons, Plaintiff
has satisfied the prerequisites for class certification, and the Court preliminarily approves the class.

C.

Fairness of Settlement

In determining whether a settlement is fair, the Court considers all relevant factors, including the strength of the plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement. (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 128.) The recovery should represent a reasonable compromise, given the magnitude and apparent merit of the claims being released, discounted by the risks and expenses of attempting to establish and collect on those claims by pursuing the litigation. (*Id.* at 129.) Nevertheless, the strength of the case on the merits for the plaintiffs is the most important factor, balanced against the amount offered in settlement. (*Id.* at 130.)

The fact that a proposed settlement may only amount to a fraction of the potential recovery does not, on its own, mean that the proposed settlement is grossly inadequate and should be disapproved. (*City of Detroit v. Grinnell Corporation* (2d Cir. 1974) 495 F.2d 448, 455.) The test is not the maximum amount plaintiff might have obtained at trial on the complaint but, rather, whether the settlement is reasonable under all the circumstances. (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 250.)

A presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small. (*Cellphone Termination Fee Cases* (2009) 180 Cal.App.4th 1110, 1118.)

The Court finds that Plaintiff's counsel has established presumption of fairness by testifying that, before entering the settlement, counsel investigated the factual allegations involved in the case, reviewed evidence produced through formal and informal discovery, analyzed the best-case scenario for recovery in this case, evaluated Defendant's defenses, and took into account case law including a recent Supreme Court case decision that interpreted certain defenses that would make it more difficult for employees to obtain penalties. (*Grover Decl.* ¶¶ 18-27, 39.) Moreover, the parties' mediation was overseen by a retired judge who had significant experience

mediating wage and hour class actions, and the mediation resulted in the parties reaching an agreement to settle the entire action. (Id. at ¶ 13.) Counsel is experienced in litigating many wage and hour and class action cases. (See id. at ¶ 2 ["Between September 1988 and October 2005, I was first an associate and then a shareholder in the firm Littler Mendelson, P.C. Littler is the largest law firm in the United States specializing in labor and employment law. During my 17 years at Littler, I practiced extensively in all areas of labor and employment law, including wage and hour law and class action defense. I also have extensive litigation experience, including numerous arbitrations and trying several cases to verdict in state and federal courts"]; id. at ¶ 4 ["Between October 15, 2005 and the present, I have been practicing law at Keller Grover LLP. At Keller Grover, approximately 95% of my time is spent representing plaintiffs in employment, privacy, and data breach class action matters. I am currently lead counsel or co lead counsel on more than 15 different class actions. I have been named Class Counsel in numerous recent class action matters ..."].)

Notwithstanding the above, because the percentage of objectors cannot be determined until the fairness hearing and final approval, the Court's finding of presumption of fairness is provisional.

D. Notice

"If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement." (CRC rule 3.769(f).)

CRC rule 3.766(d) states:

"The content of the class notice is subject to court approval. If class members are to be given the right to request exclusion from the class, the notice must include the following:

(1)

A brief explanation of the case,
including the basic contentions or denials of the parties;

(2)

A statement that the court will exclude
the member from the class if the member so requests by a specific date;

(3)

A procedure for the member to follow in
requesting exclusion from the class;

(4)

A statement that the judgment, whether favorable
or not, will bind all members who do not request exclusion; and

(5)

A statement that any member who does not request
exclusion may, if the member so desires, enter an appearance through counsel.”

Plaintiff’s proposed Notice

complies with each of the requirements set forth by CRC rule 3.766(d).

(Stipulated Settlement, Exh. 1 – Notice of Class and PAGA Action
Settlement.)

E.

PAGA Settlement

Labor Code section 2699, subdivision (l)(2) provides that
the superior court shall review and approve any settlement of any civil action
filed pursuant to PAGA. (Lab. Code § 2699, subd. (l)(2).) Section 2699,
subdivision (l)(2) requires submission of the proposed settlement to the Labor
Workforce and Development Agency (the “LWDA”) at the same time it is submitted
to the court. (Ibid.) Any settlement of any civil action filed
under PAGA must be “fair and adequate in view of the purposes and policies of
the statute.” (Flores v. Starwood Hotels & Resorts Worldwide, Inc. (C.D.
Cal. 2017) 253 F.Supp.3d 1074, 1077.)

Plaintiff has complied with

the notice requirements to LWDA on June 4, 2026. (Declaration of Attorney
Robert W. Spencer, ¶ 4 [testifying that he submitted the settlement to the LWDA at the same
time the settlement was submitted to the Court].)

“[C]ivil penalties recovered by aggrieved employees shall be

distributed as follows: 65 percent to the Labor and Workforce Development Agency for enforcement of labor laws, including the administration of this part, and for education of employers and employees about their rights and responsibilities under this code, to be continuously appropriated to supplement and not supplant the funding to the agency for those purposes; and 35 percent to the aggrieved employees.” (Lab. Code, § 2699, subd. (m).)

Here, \$15,000 of the MSA will go to the settlement of claims for civil penalties under PAGA (the “PAGA Payment”). (Stipulated Settlement, § I.BB.) 25 percent (\$3,750) of the PAGA Payment will be paid to the Aggrieved Employees and 75 percent (\$11,250) of which will be paid to the LWDA. (Ibid.)

Based on the terms of the Settlement Agreement and allocation of the MSA to the LDWA as described above, the Court finds that the Settlement Agreement complies with Labor Code section 2699.

F.

Class Representative/Incentive Award

The Stipulated Settlement states that Plaintiff will apply for a Class Representative Incentive Award/General Release Payment of up to \$5,000 for her time, effort, and risk in bringing and prosecuting this action. (Stipulated Settlement, § III.M.3.) Counsel testifies that “Plaintiff actively and aggressively represented [Class Members] during this litigation,” she “will provide a declaration outlining her efforts on behalf of the Class Members as part of the final approval process,” and will also “provide a general release of her claims against Defendant, which is much broader than the limited release that will apply to the Settlement Class Members.” (Grover Decl. ¶ 48.)

The Court preliminary approves the \$5,000 Class Representative Incentive Award/General Release Payment.

G.

Attorney’s Fees and Costs

Any agreement, express or implied, that has been entered into with respect to the payment of attorney's fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action. (CRC, Rule 3.769(b).)

Ultimately, the award of attorney's fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-96.) In common fund cases, the court may utilize the percentage method, cross-checked by the lodestar. (Laffitte v. Robert Half Int'l, Inc. (2016) 1 Cal.5th 480, 503.) Despite any agreement by the parties to the contrary, the court has an independent right and responsibility to review the attorney fees provision of the settlement agreement and award only so much as it determines reasonable. (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

Plaintiffs seek preliminary approval of attorney's fees of \$60,6667.66 (i.e., one-third of the MSA in the amount of \$182,000), plus litigation costs of up to \$15, 000. (Stipulated Settlement § III.M.4(a); Grover Decl. ¶ 21.)

The Court preliminarily approves those amounts, pending a determination of the evidence supporting the fees presented by Plaintiff at the final approval hearing. Counsel must submit evidence justifying the requested attorney's fees and litigation costs with the motion for final approval of the settlement.

H.

Third Party Administrator

The parties have agreed that Phoenix Settlement Administrators will serve as Settlement Administrator. (Stipulated Settlement § I.RR.) Plaintiff's counsel testifies that the entity is an experienced settlement administration firm. (Grover Decl. ¶ 52.)

Conclusion

Based on the
foregoing, the Court GRANTS the Motion. The Court sets a hearing for the Final
Approval of the Settlement Agreement on December 2, 2026 at 8:30 a.m. in this
department.

Moving party to give notice.

Dated: July 28, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court